

		Section 377.31 provides: "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." Pursuant to section 377.32(a), a person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest shall execute and file an affidavit or a declaration stating all of the following: (1) the decedent's name; (2) the date and place of the decedent's death; (3) "No proceeding is now pending in California for administration of the decedent's estate"; (4) if the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest; (5) either of the following, as appropriate, with facts in support thereof: (A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding"; or (B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding"; (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding"; and (7) "The affiant or declarant affirms or declares under penalty of perjury under the law of the State of California that the foregoing is true and correct." In addition, a certified copy of the decedent's death certificate shall be attached to the affidavit or declaration. Civ. Proc. Code § 377.32(c). Leisa filed a declaration (ROA 312) in support of her motion. The declaration includes all of the information required by section 377.32(a) and a copy of Paul's death certificate (ROA 312, Ex. A). Leisa is ordered to file and serve a clean (non-redlined) copy of the first amended complaint attached as Exhibit C to the Page Declaration (ROA 309) within 10 days of the date of this order. Plaintiff to give notice.
10 2:30 p.m.	Say v. QPS Production LLC, et al. 2024-01385096	Off calendar.